

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

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United States Court of Appeals for the Fourth Circuit

Mara Ellison v. Officer Nolan Rusk

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

Mara Ellison's Opposition to the Limited Mandate-Stay Request — Grant Path

Filed July 17, 2026

Mara Ellison opposes Officer Nolan Rusk's request to withhold the mandate through August 10. A short stay is less burdensome than the full period Rule 41 can permit, but duration does not replace the threshold requirements. The proposed certiorari issue remains an application of settled notice doctrine to the facts assumed in this circuit's own excessive-force cases.

The June 30 opinion held that *Estate of Armstrong v. Village of Pinehurst* gave post-2016 officers particular warning against drive-stun force in a protective mental-health seizure when resistance created no immediate danger. It did not derive liability from a generalized reasonableness slogan. It compared the encounter with *Armstrong*, *Yates v. Terry*, *Meyers v. Baltimore County*, and *Smith v. Ray*.

Ellison accepts the motion's factual discipline. The contemplated petition would not ask who struck whom or what the hidden hands did. On the fixed assumptions, Ellison's movement was a recoil and pull, not dangerous aggression, and Rusk escalated to electrical pain before allowing meaningful assistance or communication. That clean posture demonstrates why the panel's answer is correct; it does not automatically make Supreme Court review likely.

The Court should deny relief. If it grants a limited administrative stay, Ellison requests firm reporting and automatic termination terms.

I. Armstrong Is Already Specific

Armstrong concerned the same category of weapon used in the same contact mode during an effort to seize a person experiencing mental illness. The subject physically opposed officers but posed no threat to them. After deciding that the 2011 law was unclear, the Court deliberately announced what officers should understand going forward: electrical force requires an immediate safety exigency and a reasonable prospect of addressing that exigency.

That statement was not dicta untethered from facts. It closed the notice gap that produced immunity in *Armstrong* itself. Rusk acted nine years later, after departments and officers had ample opportunity to absorb the prospective rule. His assumed facts lack the very condition the rule required.

Five applications caused greater force in *Armstrong*, but the opinion did not say that cycles one through four were lawful and only the last became unconstitutional. One full application intentionally imposes pain. Similarly, Ellison moved while Armstrong held a post, yet each form of resistance is assumed nonviolent and nondangerous. The constitutional hinge is not whether a body changes coordinates; it is whether the resistance creates an immediate risk warranting the device.

The panel therefore used a precedent at a sufficiently particular level. Rusk's question would ask the Supreme Court to treat differences in quantity and motion as categorically defeating notice even though they do not supply the missing danger. That is not a substantial conflict requiring a mandate stay.

II. Zorn Changes No Historical Notice

Zorn v. Linton addressed whether broad allegations of gratuitous pain clearly prohibited a rear wristlock used after warnings to move a protester who deliberately remained in a closed capitol. The Supreme Court required attention to the actual technique and circumstances. It did not announce that a prior circuit case must match every detail or that prospective holdings lose effect when force is later administered fewer times.

The panel followed *Zorn* by defining the right around one drive-stun cycle, a welfare seizure, pain-linked pulling, no crime, and no danger. It then found materially comparable circuit authority. That is ordinary application of the Supreme Court's method, not resistance to it.

Temporal sequence further weakens Rusk's proposed petition. *Zorn* can guide the reviewing court in 2026 but could not furnish fair notice to Rusk in 2025. Rusk says he accepts that distinction, yet his theory effectively uses the later case to contract a concrete warning that governed earlier conduct. No conflict arises from refusing that retroactive contraction.

The differences between wrist pressure and an electrical weapon are also substantial. Rusk's technique was not the routine wristlock the Supreme Court evaluated; it was an added five-second pain application accompanied by a descent. The Court need not review this case to preserve *Zorn*'s rule, and the likelihood of certiorari remains speculative.

III. The Claimed Litigation Burden Is Manageable

Completion of discovery does not establish urgent harm. It means the parties already possess much of what a future trial would require. The district court may hold a status conference after remand without immediately summoning a jury. Rusk can inform that court of any filed certiorari petition and seek calendar relief based on an actual proceeding rather than a contemplated one.

Ellison bears the other side of delay. The critical witnesses testified while memories were fresher, but trial presentation still depends on recollection of a fast 2025 encounter. Continued postponement benefits neither accuracy nor finality. She has already waited through summary judgment and a full collateral appeal in which the legal immunity issue was heard.

The right to avoid trial is important, but it does not entitle every immunity appellant to keep the mandate until Supreme Court time expires. Otherwise good cause would merge with the subject of the appeal. Rule 41(d) requires something additional, such as a genuinely substantial petition question and a demonstrated need for withholding.

Rusk's retained counsel and internal authorization process show seriousness, not probable review. A draft can be completed after mandate, and ordinary district management can prevent waste if a petition is promptly filed. The proposed twenty-day extension is finite, but even a finite delay must satisfy the rule.

IV. Conditions Required if Relief Is Granted

If the panel concludes that the recent relationship between *Zorn* and *Armstrong* warrants a brief stay, the order should expire automatically at the end of August 10. Rusk should be required to notify the clerk immediately upon deciding not to petition and to confirm status by a fixed Eastern-time deadline even if nothing has changed.

Continuation beyond August 10 should occur only upon the written notice and predicate identified in Rule 41(d)(2): a filed petition or a granted extension of the filing period. An intention to seek an extension, an unfinished draft, or silence should not prolong the stay. The panel should reserve authority to dissolve relief earlier.

No bond meaningfully addresses Ellison's delay injury. She does not request nominal security for its own sake. Instead, the Court should direct issuance on the next business day after abandonment, expiration, or dissolution, unless a qualifying filing lawfully continues the stay. A definite release mechanism will avoid another discretionary interval.

The order should also state that the stay leaves the opinion untouched and supplies no indication that certiorari will be granted. It should preserve the factual boundary: no strike, reach, flight, threat, or danger may be imported into the proposed legal question. These limitations reduce the risk that temporary relief will be described later as reconsideration of the merits.

V. Conclusion

Rusk has not shown that a case-specific disagreement about the reach of *Armstrong* presents a substantial question likely to attract Supreme Court review. The panel used a concrete circuit precedent involving electrical force, mental-health seizure, physical resistance, several officers, and no immediate danger. *Zorn* does not require an identical cycle count or body position.

Nor has Rusk established that a remand status conference or ordinary pretrial work during petition preparation will irreparably defeat his rights. The district court can coordinate its schedule with a genuine Supreme Court filing. Ellison's interest in moving an older claim toward a factfinder weighs against continued circuit control.

The motion should be denied and the mandate allowed to issue under the applicable schedule. If the Court instead grants the narrow request, Ellison asks that relief terminate no later than August 10, require immediate abandonment notice and an end-of-day report, and lead to next-day issuance when the predicate ends. No security need be imposed if those protections are included.

Counsel electronically filed this opposition on July 17, 2026 and served Rusk's attorney at the registered address. The response relies only on the certified record, the June 30 disposition, and publicly available decisions. It does not supplement or reinterpret the hidden video interval.

Respectfully submitted for appellee Mara Ellison.